CFI 081/2023 Michael George Forbes v Robert Kidd

JANUARY 29, 2026 COURT OF FIRST INSTANCE - ORDERS

Claim No: CFI 081/2023

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF APPEAL

BETWEEN

MICHAEL GEORGE FORBES

Claimant

and

ROBERT KIDD

Defendant

ORDER WITH REASONS OF H.E. CHIEF JUSTICE WAYNE MARTIN

UPON the Order with Reasons of H.E. Chief Justice Wayne Martin dated 16 December 2025 (the "Order")

AND UPON the Claimant's Statement of Costs dated 31 December 2025

AND UPON the Defendant's submissions dated 14 January 2026 and the Claimant's submissions in reply dated 20 January 2026

IT IS HEREBY ORDERED THAT the costs to be paid by the Defendant to the Claimant pursuant to the Order are assessed in the amount of USD 17,000.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 29 January 2026

Time: 2pm

SCHEDULE OF REASONS

1. On 16 December 2025, the Defendant's Renewed Application for Permission to Appeal and associated Application for Leave to Adduce New Evidence were dismissed and the Defendant was ordered to pay the Claimant's costs of both Applications to be assessed on the standard basis.

2. The work done in response to the Applications consisted of the preparation and filing of a skeleton in opposition (the "skeleton"). In addition, as will be seen, amounts are claimed for the preparation of the Statement Costs.

3. The Claimant claims a total of USD 30,589.16 made up of:

(a) USD 4,483.80 in respect of services provided by lawyers engaged after the skeleton was filed;

(b) USD 798.73 in respect of fees for the lawyers who were responsible for preparing and filing the skeleton;

(c) USD 1,682.68 in respect of fees paid to an "independent contractor" being a lawyer who had left the service of the lawyers previously representing the Claimant and who provided legal assistance to senior counsel in the preparation of the skeleton; and

(d) USD 23,624.00 in respect of the fees of senior counsel for the preparation of the skeleton.

4. The Defendant objects to the costs claimed in their entirety on the ground that the Statement of Costs was filed one day later than the time allowed for service of the Statement in the directions made on 16 December 2025.The Defendant does not suggest that any prejudice was occasioned by the slight delay. The objection taken lacks any merit and is dismissed.

5. The Defendant further submits that the total costs claimed are not proportionate to the work involved, relying upon amounts assessed in other cases involving applications for permission to appeal. Contentions of that kind are of little or no assistance, given that the amount of costs properly allowed in each case will turn upon the particular facts and circumstances of that case.

6. The Defendant also contends that each of the components of the costs claimed are excessive for various reasons. Dealing firstly with the costs claimed in respect of the lawyers currently representing the Claimant, clearly those costs can only have been incurred in relation to the preparation of the Statement of Costs. I accept the Defendant's submission that a claim of USD 4,483.80 is excessive for what is a simple and straightforward Statement of Costs.

7. In relation to the amounts claimed in respect of fees paid to the Claimant's former lawyers and the independent contractor, the total of those amounts is a little under USD 2,500.00, which is entirely reasonable and proportionate for the work involved in arranging for the preparation of and filing of the skeleton and providing assistance to senior counsel in that regard.

8. Counsel fees in the amount of USD 23,624.00 in respect of the preparation of the skeleton are excessive. The grounds of the Renewed Application were identical to the Initial Application for Permission to Appeal. The skeleton could, and should, have been based upon the skeleton that was filed in opposition to the Initial Application, which would not have required a great deal of work. Further, the amount paid to counsel includes a "success fee" because counsel agreed to render fees on a contingency basis.

9. Viewing the costs claimed as a whole, an amount in excess of USD 30,000.00 is excessive for the work involved in preparing a skeleton responding to grounds of appeal which had not changed and for the preparation of a Statement of Costs.

10. The Claimant's costs will be assessed in the amount of USD 17,000.00.